

23TRCV02318 23TRCV02318

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-22

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Case Number: 23TRCV02318 Hearing Date: September 22, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CYNTHIA

BOOZE, individually and as Successor-in-Interest to decedent GORDY

NNAMDIANIAKO,

Plaintiffs,

Case No.:

23TRCV02318

vs.

[Tentative]

Granted

ONE

IMPERIAL PLAZA LP; THE RIGHT CHOICE HOME MODELING, INC.; SUPER CENTER
CONCEPTS, INC., DBA SUPERIOR GROCERS; COMMUNITY ENFORCEMENT PATROL PRIVATE
SECURITY INC.; 12 0 27 PROTECTIVE SERVICES, INC.; BIG 5 CORP; BIG 5 SPORTING
GOODS #430; O'REILLY AUTOMOTIVE STORES, INC.; O'REILLY AUTO ENTERPRISES LLC;

CONROY'S LLC; 1800 FLOWERS CONROYS; JPMORGAN CHASE BANK, NATIONAL ASSOCIATION; JACK IN THE BOX INC.; JACK IN THE BOX #3500; RBD CALIFORNIA RESTAURANTS LIMITED DBA KENTUCKY FRIED CHICKEN; PANDA RESTAURANT GROUP, INC.L PANDA EXPRESS INC. ; and DOES 1 through 50, inclusive,

Defendants.

Hearing

Date: September

22, 2026

Moving Parties: Defendant Community Enforcement Patrol

Responding Party: Plaintiff Cynthia Booze

HEARING: Motion for Summary

Judgment

The Court considered the moving,
opposition, and reply papers.

RULING

The Court grants the Motion for Summary Judgment.

BACKGROUND

On July 18, 2025, Plaintiff Cynthia Booze filed the Complaint against Defendants One Imperial Plaza, Superior Wholesale Grocers Inc., and The Right Choice Home Remodeling, alleging causes of action for negligence, wrongful death, respondent superior liability, and negligent hiring and retention.

On February 19, 2025, Plaintiff filed the Amended Complaint.

On August 12, 2025, Plaintiff filed the Second Amended Complaint (SAC).

On March 24, 2026, Defendant

Community Enforcement Patrol filed the Motion for Summary Judgment.

On September 2, 2026, Plaintiff
filed the Opposition.

On September 8, 2026, Defendant
filed the Reply.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As the moving party, Plaintiff bears the burden of persuasion that there is no triable issue of material fact and that it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A plaintiff meets its initial burden of showing that there is no defense to a cause of action by proving each element of the cause of action entitling it to judgment. (Code Civ. Proc., § 437c, subd. (p)(1).) To carry that burden, Plaintiff must present evidence that would require a reasonable trier of fact to find each underlying material fact more likely than not. (*Aguilar, supra*, 25 Cal.4th 826, 851-852.)

Once Plaintiff makes this prima facie showing, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Code

Civ. Proc., § 437c, subd. (p)(1); Aguilar, supra, 25 Cal.4th 826, 850.)

The defendant may not rely on the allegations or denials of its pleadings but must set forth specific facts showing that a triable issue of material fact exists. (Code Civ. Proc., § 437c, subd. (p)(1).) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the opposing party in accordance with the applicable standard of proof. (Aguilar, supra, 25 Cal.4th 826, 850.) In assessing whether that burden is met, the court considers all of the evidence and reasonable inferences in the light most favorable to the opposing party and may not weigh the evidence as though it were the trier of fact. (Id. at 856.)

EVIDENTARY OBJECTIONS

Defendant's
objections to the Declaration of Gregory Williams

Sustained:1-3

Overruled: 4-33

JUDICIAL NOTICE

The Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code § 452 subd. (c).)

Defendants request that the Court take judicial notice of Plaintiff's Third Amended Complaint, filed on or about November 13, 2025, Paragraphs 17-19, Page 5, Lines 7-17, and the First, Second, Third, Fourth and Fifth Causes of Action contained therein, and the fact that 11202 Crenshaw Boulevard, Inglewood, CA, is a commercial shopping center, with AIN 4029-032-006, and that the sole owner of this property since 2003 is One Imperial Plaza, LP.

The Court grants these requests pursuant to Evidence Code section 452, subdivisions (d) and (h).

DISCUSSION

Plaintiff

alleges that the Decedent was shot in the parking lot of the Crenshaw Shopping Center following an altercation with another individual.

Duty

The elements of a

negligence cause of action are duty, breach, causation, and damages. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 317.)

Defendant

argues that duty is a question of law for the court and that it may obtain summary judgment by showing the evidence establishes it owed no duty to Plaintiff. (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 674.) Defendant maintains that courts analyze third-party criminal acts differently from ordinary negligence and must apply a heightened level of foreseeability before imposing liability, because it is difficult to predict when a criminal will strike and difficult to remove every means of achieving a criminal goal. (Wiener v. Southcoast Childcare Centers, Inc. (2004) 32 Cal.4th 1138, 1149-1150.) Defendant stresses that duty in a third-party criminal case requires actual knowledge, and not constructive, inferential, or knowledge by association, and that more than a general prospect of danger is needed to impose a burdensome duty. (Hanouchian v. Steele (2020) 51 Cal.App.5th 99, 111.) Courts determine the scope of any such duty by balancing the foreseeability of the danger arising on the premises against the burden of the precautionary measure. (Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 236-240, 243.)

Defendant further

argues that foreseeability, like duty, is a question of law for the court, and that the requisite degree of foreseeability rarely can be shown absent prior similar incidents of violent crime at the premises, as any other rule would make landlords insurers of public safety. (Sharon P. v. Arman, Ltd. (1999) 21 Cal.4th 1181, 1188; Ann M., supra, 6 Cal.4th 674, 679.) A landowner need not guard against third-party conduct it has no reason to anticipate. (Riley v. Marcus (1981) 125 Cal.App.3d 103, 109.) Defendant contends that a plaintiff must establish prior similar incidents of

violent crime on the premises, reflecting the extraordinarily high degree of foreseeability required. (Alvarez v. Jacmar Pac. Pizza Corp. (2002) 100 Cal.App.4th 1190, 1211; Garcia v. Paramount Citrus Assn., Inc. (2008) 164 Cal.App.4th 1448, 1457.)

Applying these principles, Defendant argues that Plaintiff cannot meet the relevant standard because there is no evidence of any prior shootings, murders, robberies, or comparable crime at the property, and thus no basis to find the shooting of Gordy Aniako by Angel Ramos foreseeable.

In opposition, Plaintiff argues that the motion is a red herring because the undisputed facts establish a duty. Plaintiff contends that Defendant One Imperial Plaza contracted with Defendant CEP to provide security for the shopping center and parking lot, and that this fact alone required Defendant CEP to perform as a reasonably prudent security company would have. Plaintiff argues that a guard who contracts to provide security creates a special relationship with the business's customers sufficient to impose an affirmative duty to protect them, that the guard is liable for failing to act as a reasonable guard would, and that whether the guard acted reasonably and caused the injury are questions of fact for trial rather than summary judgment. (Trujillo v. G.A. Enterprises (1995) 36 Cal.App.4th 1105, 1108-1109.)

Plaintiff argues in the alternative that Defendant breached its duty under the sliding-scale analysis, which balances the foreseeability of harm, the certainty of injury, the closeness of the connection between the defendant's conduct and the injury, the moral blame, the policy of preventing future harm, the burden of imposing a duty, and the availability and prevalence of insurance. (Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213.) Plaintiff argues these factors favor a duty because the shooting was foreseeable and the injury certain given a 15-minute dispute that drew a filming crowd of more than 20 people, because the injury flowed directly from Defendant's inaction when a real security presence would have de-escalated matters before Ramos retrieved his firearm, because the guards' whereabouts are unaccounted for by any video, logs, or recollection and the incident report was written a week later and conflicts with the record, and because Defendant knew of extensive crime in the area.

Furthermore, Plaintiff

contends that the shooting was reasonably foreseeable, describing foreseeability as an elastic factor that is ordinarily a question of fact, requiring only that the general character of the harm be foreseeable rather than its precise nature, and not governed by a rigid prior similar incident rule that would deprive the jury of its role. (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 125-127.) Plaintiff adds that a lesser degree of foreseeability suffices where strong policy reasons favor prevention or the harm can be prevented by simple means. Plaintiff relies on 506 police calls at the Superior Grocers store over four years and 683 calls within a half mile over two years, on the expert declarations of Michael Rock and Brad Avrit, and on Defendant's own admission that it knew of trespassing and vagrants and hired Defendant CEP for that reason

Plaintiff further argues

that Defendant breached its contractual duty of care. Plaintiff contends the threat persisted in the parking lot for at least 15 minutes while the guards were at a storage closet conducting a pass-down meeting meant to last under a minute, with no daily logs or checkpoint records for the date. Plaintiff concludes that the question is not whether security should have been hired, but whether Defendant CEP performed its obligations; it did not, and Plaintiff should not be stripped of her right to prove the duty and its breach to a jury.

"The existence and

scope of a property owner's duty to protect against third-party crime is a question of law for the court to resolve." (Castaneda, supra, 41 Cal.4th 1205, 1213.) "A landlord generally owes a tenant the duty, arising out of their special relationship, to take reasonable measures to secure areas under the landlord's control against foreseeable criminal acts of third parties." (Ibid.) When considering the existence and scope of such a duty the court looks to "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (Ibid.) "The duty analysis we have developed requires the court in each case (whether trial or appellate) to identify the specific action or actions the plaintiff claims the defendant had a duty to undertake. Only after the scope of the duty under consideration is defined may a court meaningfully undertake the balancing

analysis of the risks and burdens present in a given case to determine whether the specific obligations should or should not be imposed on the landlord.” (Id. at 1214.)

Plaintiff argues

that no preventative measures were taken to stop crime at the property, no risk assessment was completed, no service calls or police reports were stored, and the security companies did not have access to the security cameras. Plaintiff further states that no background checks were performed on security hires. Plaintiff also argues that had there been a real substantive security presence, including patrolling each row of the lot and reporting crimes in progress to the police, the shooting would not have happened.

First, looking at

Plaintiff’s argument that more or better security was required, i.e., no risk assessment, no camera access, etc. By asserting that Defendant was required to provide security, Plaintiff is asking the Court to impose a burdensome measure that requires a “showing of prior similar criminal incidents (or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior nearly identical criminal incidents.” (Delgado, supra, 36 Cal.4th 224, 245.)

Here Defendant has shown that there have been no shootings, murders, assaults, robberies, or burglaries in the last 3 years at the subject location. (UMF 6-10.) Consequently, Defendant has shown that Plaintiff cannot prove the required heightened foreseeability for a finding of duty.

To show prior similar incidents, Plaintiff has

offered evidence that, in the past four years, 506 911 calls were made regarding the shopping center and that the shopping center had been dealing with a known homeless and vagrancy problem. (PUMF 45-48.) However, the Court has found that general criminality in an area does not create the heightened foreseeability required for such a burdensome duty, and a 911 call is not a crime and only points towards the general criminality argument California courts have rejected. (Delgado, supra, 36 Cal.4th 224, 238-239 (paraphrasing *Sharon P. v. Arman, Ltd.* (1999) 21 Cal.4th 1181, 1185-1187.) Plaintiff has also provided additional 911 calls from within a half-mile radius of the store, but these also reflect general criminality, especially since they did not occur at the subject property. Therefore, the Court finds that Plaintiff has not shown any material disputes of fact regarding any prior similar incidents at the subject property.

Next, looking to

Plaintiff's responsive argument, i.e., that Defendant's security response to the attack was lacking. The contract between Defendant CEP and Defendant One Imperial Plaza creates a special relationship between Defendant and Plaintiff, who was shopping at the plaza. (*Trujillo v. G.A. Enterprises* (1995) 36 Cal.App.4th 1105, 1108.) The Court has stated, "foreseeability analysis in a case...involving a proprietor's duty to respond reasonably to criminal conduct that is imminent or even ongoing in his or her presence—contrasts fundamentally with the type of foreseeability at issue in cases such as *Ann M.*, which involve a proprietor's duty to take preventative measures to guard against possible future criminal conduct." (*Morris v. De La Torre* (2005) 36 Cal.4th 260, 271.) When "assaultive conduct is imminent—or when... it is actually occurring in plain view—it requires no mastery of metaphysical philosophy or economic risk analysis to appreciate the strong possibility of serious injury to persons against whom such imminent or ongoing criminal conduct is aimed." (*Ibid.*) However, the responsive duty still requires criminal conduct occurring in the presence of a defendant's employee. (*Id.* at 270.) In *Trujillo*, the Court found a defendant had a duty to respond to a third-party assault when it was witnessed by a security guard. (*Trujillo*, supra, 36 Cal.App.4th 1105, 1108.) Since neither Defendant's employees were present for the confrontation, no responsive duty ran to Defendant. (UMF 12.) Consequently, Defendant has shown that Plaintiff cannot show the actual knowledge required to find a duty to respond adequately.

In its Opposition,

Plaintiff provides evidence that might show constructive notice, such as the length of the fight and lack of records, but shows no evidence that Defendant's employees saw the assault or had actual knowledge of it. Thus, the Court finds that Plaintiff has not shown any material disputes of fact.

Because Defendant

has shown that it did not owe a duty under Plaintiff's preventive or responsive theories, the Court finds that Plaintiff cannot prove Defendant owed her a duty. Furthermore, Plaintiff has not shown any triable issues of material fact.

Therefore, the Court

grants the Motion for Summary Judgment.

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CYNTHIA

BOOZE, individually and as Successor-in-Interest to decedent GORDY

NNAMDIANIAKO,

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RESTAURANTS LIMITED DBA KENTUCKY FRIED CHICKEN; PANDA RESTAURANT GROUP, INC.L
PANDA EXPRESS INC. ; and DOES 1 through 50, inclusive,

Defendants.

Hearing

Date: September

22, 2026

Moving Parties: Defendant One Imperial Plaza

Responding Party: Plaintiff Cynthia Booze

HEARING: Motion for Summary

Judgment

The Court considered the moving,
opposition, and reply papers.

RULING

The Court grants the Motion for Summary Judgment.

BACKGROUND

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Booze filed the Complaint against Defendants One Imperial Plaza, Superior
Wholesale Grocers Inc., and The Right Choice Home Remodeling, alleging causes
of action for negligence, wrongful death, respondent superior liability, and
negligent hiring and retention.

On February 19, 2025, Plaintiff
filed the Amended Complaint.

On August 12, 2025, Plaintiff filed
the Second Amended Complaint (SAC).

On March 27, 2026, Defendant One
Imperial Plaza filed the Motion for Summary Judgment.

On September 2, 2026, Plaintiff
filed the Opposition.

On September 11, 2026, Defendant
filed the Reply.

LEGAL STANDARD

The function of a motion for summary judgment
or adjudication is to allow a determination as to whether an opposing party

cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each cause of action, as framed by the complaint, the defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2); see also Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

“Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Id. at 163.)

EVIDENTARY OBJECTIONS

Defendant's
objections to the Declaration of Gregory Williams

Sustained:1-3

Overruled: 4-33

DISCUSSION

Plaintiff

alleges that the Decedent was shot in the parking lot of the Crenshaw Shopping Center following an altercation with another individual.

Duty

The elements of a

negligence cause of action are duty, breach, causation, and damages. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 317.)

Defendant argues

that it had no duty to implement the increased security measures alleged because Plaintiff cannot establish the requisite foreseeability. Defendant relies on the principle that there is generally no duty to protect others from third-party conduct, and that although a landlord must take reasonable measures to secure areas under its control against foreseeable criminal acts, the existence and scope of that duty is a question of law for the court. (Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 235.) Defendant frames the duty inquiry as a balancing of the burden of the proposed measures against the foreseeability of the harm, noting that the more burdensome the measure, the higher the foreseeability required. (Castaneda v. Olsner (2007) 41 Cal.4th 1205, 1213-1214.)

Addressing the

specific measures, Defendant contends that lighting, ingress and egress, and design features could not have caused the murder because it is undisputed that the incident occurred in the middle of the day, during daylight hours, in an open portion of the parking lot outside Defendant Superior Grocers, and that the alleged failure to conduct a security threat assessment is not a viable basis for such a claim. (Williams v. Fremont Corners, Inc. (2019) 37 Cal.App.5th 654, 672-673.) Defendant characterizes the real thrust of Plaintiff's claim as the contention that Defendant One Imperial should have retained off-duty police officers or armed guards, or hired more than two unarmed guards.

Defendant argues

that hiring security guards is a heavily burdensome duty that arises only where foreseeability is heightened, and that this burden is so high that the requisite foreseeability is rarely provable without prior similar incidents. (Castaneda, supra 41 Cal.4th 1205, 1222.) Defendant notes it is undisputed that Defendant One Imperial engaged Defendant CEP to patrol the shopping center and parking lot 24 hours per day, with two guards from 10 a.m. to 6 p.m., a golf cart, dummy vehicles, and a dedicated dispatch line. That Defendant Superior Grocers retained its own guards, and that Defendant One Imperial installed dozens of security cameras. Defendant argues that requiring armed guards or off-duty officers would be an even higher burden for which no published opinion has ever imposed a duty, that such a requirement carries high social costs because major tenants typically prohibit armed guards by lease and armed guards risk injuring patrons, and that a business owner's duty does not extend beyond providing an unarmed, uniformed, licensed security guard.

On foreseeability,

Defendant argues that a high degree of foreseeability is required before guards must be posted in the common areas of a shopping center, shown by prior similar incidents or other indications of a reasonably foreseeable risk of violent assaults in that location. (Sharon P. v. Arman, Ltd. (1999) 21 Cal.4th 1181, 1190-1195.) Defendant contends it had no notice of any prior similar incident in which a patron was shot or murdered at the shopping center, and that this absence of notice, together with the security already in place, demonstrates that Defendant owed the decedent no duty to employ off-duty police officers or armed guards because the random and violent attack by Ramos was not reasonably foreseeable.

Finally, Defendant

invokes the reasoning that a landowner is not the cause of an assault it could not reasonably have prevented in an open area, and that treating a landowner's failure to deter wanton third-party violence as the cause of a victim's injuries would make it the insurer of everyone who enters the premises, when police protection should remain a governmental obligation. (Nola M. v. University of Southern California (1993) 16 Cal.App.4th 421, 437.)

In opposition,

Plaintiff argues that Defendant One Imperial Plaza's contract with Defendant CEP to provide security services creates a duty to ensure CEP performed adequately, which Plaintiff contends it did not. Plaintiff relies on authority holding that contracting to provide security services creates a special relationship

sufficient to impose an obligation to protect customers, that a business may be liable for failing to hire a competent guard, and that whether the guards acted reasonably and were a substantial factor in the injury are questions of fact for trial rather than summary judgment. (*Trujillo v. G.A. Enterprises* (1995) 36 Cal.App.4th 1105, 1108-1109.)

Plaintiff argues

that Defendant also breached its duty under the sliding scale analysis, which requires the court to identify the specific measures claimed before balancing the risks and burdens. (*Castaneda*, *supra*, 41 Cal.4th 1205, 1213.)

Plaintiff contends the shooting was foreseeable and the injury certain, noting the dispute between Gordy Aniako and Ramos lasted at least 15 minutes and drew more than 20 people who filmed it, and that Defendant's disregard for safety was reprehensible given the absence of surveillance video, checkpoint logs, and guard recollection, and an incident report written a week later that conflicts with other evidence. Plaintiff argues the policy of preventing harm supports a duty, citing 506 police calls at the Superior Grocers store in the four years before the shooting and 683 police calls within a half mile in the two years before, that no added burden exists because Defendant already hired Defendant CEP and needed only to oversee it, and that insurance and existing CAM charges could have absorbed any nominal cost of an off-duty officer.

Plaintiff also argues

the shooting was reasonably foreseeable, emphasizing that foreseeability is an elastic factor, is ordinarily a question of fact, and is not determined by a rigid prior similar incident rule. (*Isaacs v. Huntington Memorial Hospital* (1985) 38 Cal.3d 112, 125-127.) Plaintiff contends that where harm can be prevented by simple means, a lesser degree of foreseeability is required, that the police call history and the expert declarations of Michael Rock and Brad Avrit establish foreseeability, and that Defendant admits it hired Defendant CEP because of known trespassing and vagrancy. (*Castaneda*, *supra*, 41 Cal.4th 1205, 1213.) Plaintiff adds that hiring a security company supports an inference of foreseeability and that duty and foreseeability are ordinarily jury questions. (*Tan v. Arnel Management Co.* (2009) 170 Cal.App.4th 1087, 1097.)

Plaintiff also argues

that Defendant owed nonfeasance-based duties, which include a duty to respond and a duty to prevent. (*Morris v. De La Torre* (2005) 36 Cal.4th 260, 271.) Plaintiff contends the duty to respond requires protecting invitees

from an imminent or ongoing threat, imposes only a minimal burden, and depends on reasonable foreseeability. (Delgado, *supra*, 36 Cal.4th 224, 241, 246-247, fn. 24.) Plaintiff argues the threat was imminent and ongoing for at least 15 minutes, that the guards were purportedly at a pass-down meeting that should have lasted under a minute, that no logs or checkpoint records establish their whereabouts, and that no one called 911 during the escalation. Plaintiff contends the duty to prevent required only reasonable foreseeability for minimally burdensome measures, and that Defendant could have completed a risk assessment, reviewed reports, given Defendant CEP camera access, screened its guards, integrated communications, and hired an off-duty officer through existing CAM charges at little or no cost.

Plaintiff further argues

that Defendant also owed misfeasance-based duties to Gordy Aniako. Plaintiff contends Defendant One Imperial Plaza owed such duties because it paid for guards whose conduct fell below the standard of care, failed to follow its own post orders, and allowed its guards to do nothing, relying on the Rock declaration detailing absentee ownership, the absence of any security assessment over 20 years, untrained management and guards, conflicting accounts of the guards' location, missing records, a disabled guard unable to patrol on foot, nonoperational dummy vehicles, and cameras used only for passive recording. Plaintiff argues the issue is not whether security should have been hired but whether the security hired performed reasonably, and the record shows it did not.

"The existence and

scope of a property owner's duty to protect against third-party crime is a question of law for the court to resolve." (Castaneda, *supra*, 41 Cal.4th 1205, 1213.) "A landlord generally owes a tenant the duty, arising out of their special relationship, to take reasonable measures to secure areas under the landlord's control against foreseeable criminal acts of third parties." (Ibid.) When considering the existence and scope of such a duty the court looks to "the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved." (Ibid.) "The duty analysis we have developed requires the court in each case (whether trial or

appellate) to identify the specific action or actions the plaintiff claims the defendant had a duty to undertake. Only after the scope of the duty under consideration is defined may a court meaningfully undertake the balancing analysis of the risks and burdens present in a given case to determine whether the specific obligations should or should not be imposed on the landlord.” (Id. at 1214.)

Plaintiff argues

that no preventative measures were taken to stop crime at the property, no risk assessment was completed, no service calls or police reports were stored, and the security companies did not have access to the security cameras. Plaintiff further states that no background checks were performed on security hires. Plaintiff also argues that had there been a real substantive security presence, including patrolling each row of the lot and reporting crimes in progress to the police, the shooting would not have happened.

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To show prior similar incidents, Plaintiff has

offered evidence that, in the past four years, 506 911 calls were made regarding the shopping center and that the shopping center had been dealing with a known homeless and vagrancy problem. (PUMF 45-48.) However, the Court has found that general criminality in an area does not create the heightened foreseeability required for such a burdensome duty, and a 911 call is not a crime; it only points to the general criminality argument that California courts have rejected. (Delgado, supra, 36 Cal.4th 224, 238-239 (paraphrasing Sharon P. v. Arman, Ltd. (1999) 21 Cal.4th 1181, 1185-1187.) Plaintiff has also provided additional 911 calls from within a half-mile radius of the store, but these also reflect general criminality, especially

since they did not occur at the subject property. Therefore, the Court finds that Plaintiff has not shown any material disputes of fact regarding any prior similar incidents at the subject property.

Next, looking to

Plaintiff's responsive argument, i.e., that Defendant's response to the attack was lacking. Defendant stands in a special relationship with Plaintiff, an invitee shopping at the plaza, and Defendant's retention of CEP to provide security reinforced that relationship. (*Trujillo v. G.A. Enterprises* (1995) 36 Cal.App.4th 1105, 1108.) The Court has stated, "foreseeability analysis in a case...involving a proprietor's duty to respond reasonably to criminal conduct that is imminent or even ongoing in his or her presence—contrasts fundamentally with the type of foreseeability at issue in cases such as *Ann M.*, which involve a proprietor's duty to take preventative measures to guard against possible future criminal conduct." (*Morris v. De La Torre* (2005) 36 Cal.4th 260, 271.) When "assaultive conduct is imminent—or when... it is actually occurring in plain view—it requires no mastery of metaphysical philosophy or economic risk analysis to appreciate the strong possibility of serious injury to persons against whom such imminent or ongoing criminal conduct is aimed." (*Ibid.*) However, the responsive duty still requires criminal conduct occurring in the presence of a defendant's employee. (*Id.* at 270.) In *Trujillo*, the Court found a defendant had a duty to respond to a third-party assault when it was witnessed by a security guard. (*Trujillo*, supra, 36 Cal.App.4th 1105, 1108.) Here, the argument and shooting were witnessed by two employees of Defendant Superior Grocers, no security guards, and no agent of Defendant One Imperial Plaza. (UMF 5-18, 35.) Since none of Defendant's employees nor CEP's security guards were present for the confrontation, no responsive duty ran to Defendant. Consequently, Defendant has shown that Plaintiff cannot show the actual knowledge required to find a duty to respond adequately.

In its Opposition,

Plaintiff provides evidence that might show constructive notice, such as the length of the fight and lack of records, but shows no evidence that Defendant's employees saw the assault or had actual knowledge of it. Thus, the Court finds that Plaintiff has not shown any material disputes of fact.

Because Defendant

has shown that it did not owe a duty under Plaintiff's preventive or responsive

duty theories, the Court finds that Plaintiff cannot prove Defendant owed her a duty. Furthermore, Plaintiff has not shown any triable issues of material fact.

Therefore, the Court
grants the Motion for Summary Judgment.

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CYNTHIA
BOOZE, individually and as Successor-in-Interest to decedent GORDY
NNAMDIANIAGO,

Plaintiffs,

Case No.:

23TRCV02318

vs.

[Tentative]
Granted in part/denied in part

ONE
IMPERIAL PLAZA LP; THE RIGHT CHOICE HOME MODELING, INC.; SUPER CENTER
CONCEPTS, INC., DBA SUPERIOR GROCERS; COMMUNITY ENFORCEMENT PATROL PRIVATE
SECURITY INC.; 12 0 27 PROTECTIVE SERVICES, INC.; BIG 5 CORP; BIG 5 SPORTING
GOODS #430; O'REILLY AUTOMOTIVE STORES, INC.; O'REILLY AUTO ENTERPRISES LLC;
CONROY'S LLC; 1800 FLOWERS CONROYS; JPMORGAN CHASE BANK, NATIONAL
ASSOCIATION; JACK IN THE BOX INC.; JACK IN THE BOX #3500; RBD CALIFORNIA
RESTAURANTS LIMITED DBA KENTUCKY FRIED CHICKEN; PANDA RESTAURANT GROUP, INC.L
PANDA EXPRESS INC. ; and DOES 1 through 50, inclusive,

Defendants.

Hearing

Date: September
22, 2026

Moving Parties: Cross-Complainant Big 5 LLC

Responding Party: Cross-Defendant One Imperial Plaza

HEARING: Motion for Summary Adjudication

The Court considered the moving,
opposition, and reply papers.

RULING

The Court grants the Motion for Summary
Adjudication as to the duty to defend but denies the Motion for Summary
Adjudication as to the issue of indemnification.

BACKGROUND

On July 18, 2025, Plaintiff Cynthia
Booze filed the Complaint against Defendants One Imperial Plaza, Superior
Wholesale Grocers Inc., and The Right Choice Home Remodeling, alleging causes
of action for negligence, wrongful death, respondent superior liability, and
negligent hiring and retention.

On January 17, 2025,
Cross-Complainant Big 5 filed the Cross-Complaint against Cross-Defendant One
Imperial Plaza alleging causes of action for negligence, express indemnity,
implied contractual indemnity, partial indemnity, equitable indemnity, and declaratory
relief.

On June 18, 2026, Cross-Complainant
filed the Motion for Summary Adjudication.

On September 2, 2026,
Cross-Defendant filed the Opposition.

On September 11, 2026, Cross-Complainant
filed the Reply.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As the moving party, Plaintiff bears the burden of persuasion that there is no triable issue of material fact and that it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A plaintiff meets its initial burden of showing that there is no defense to a cause of action by proving each element of the cause of action entitling it to judgment. (Code Civ. Proc., § 437c, subd. (p)(1).) To carry that burden, Plaintiff must present evidence that would require a reasonable trier of fact to find each underlying material fact more likely than not. (*Aguilar, supra*, 25 Cal.4th 826, 851-852.)

Once Plaintiff makes this prima facie showing, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Code Civ. Proc., § 437c, subd. (p)(1); *Aguilar, supra*, 25 Cal.4th 826, 850.) The defendant may not rely on the allegations or denials of its pleadings but must set forth specific facts showing that a triable issue of material fact exists. (Code Civ. Proc., § 437c, subd. (p)(1).) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find

the underlying fact in favor of the opposing party in accordance with the applicable standard of proof. (Aguilar, supra, 25 Cal.4th 826, 850.) In assessing whether that burden is met, the court considers all of the evidence and reasonable inferences in the light most favorable to the opposing party and may not weigh the evidence as though it were the trier of fact. (Id. at 856.)

JUDICIAL NOTICE

The Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of “Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evid. Code § 452 subd. (c).)

Cross-Complainant

requests that the Court take judicial notice of the Big 5 Sporting Goods Corporation Statement of Information filed with the California Secretary of State on October 25, 2024; the Big 5 Sporting Goods Corporation Certificate of Surrender filed with the California Secretary of State on October 03, 2025; the Big 5 Corp. Statement of Information filed with the California Secretary of State on October 25, 2024, The Big 5 Corp. Certificate of Surrender filed with the California Secretary of State on October 03, 2025, and The Big 5 LLC Registration Out of State Limited Liability Company filed with the California Secretary of State on October 03, 2025.

The Court grants these requests pursuant to Evidence Code section 452 subdivision (c).

DISCUSSION

Cross-Complainant

requests summary adjudication as to Cross-Defendant's duty to defend and indemnify Cross-Complainant in the instant action.

Cross-Complainant

contends that under Civil Code section 2778 and Crawford v. Weather Shield Mfg., Inc. (2008) 44 Cal.4th 541, Plaintiff's claims triggered

Cross-Defendant One Imperial's duty to defend. Cross-Complainant argues that section 2778 provides that an indemnity against claims, demands, or liability embraces the cost of defense incurred in good faith and in the exercise of reasonable discretion, and that subdivision 4 binds the indemnitor, on request of the indemnitee, to defend actions brought against the indemnitee in respect to the matters embraced by the indemnity. (Civ. Code, § 2778, subds. (3)-(4).)

Cross-Complainant argues that Crawford construed these provisions to create an immediate and continuing duty to defend that arises upon proper tender, before the litigation determines whether indemnity is actually owed, and that this duty exists even where the indemnitor is ultimately found not to have caused the plaintiff's damages. (Crawford v. Weather Shield Mfg., Inc. (2008) 44 Cal.4th 541, 553-558.) Cross-Complainant argues that the duty extends to all claims potentially subject to contractual indemnity, requires the indemnitor to actually defend rather than merely reimburse, and may be resolved on summary adjudication. (Crawford, supra, 44 Cal.4th. 541, 553-554.)

Cross-Complainant

argues that the duty to defend is owed well before any determination that indemnity is owed, and that it is decided as a matter of law rather than by the jury. (Centex Homes v. R-Help Construction Co., Inc. (2019) 32 Cal.App.5th 1230, 1236.) Cross-Complainant continues that the Lease Agreement expressly creates this duty. Cross-Complainant points to Section 10.5.2, under which Cross-Defendant One Imperial, as Landlord, agreed to indemnify and hold the Tenant harmless against any loss, liability, or damage arising from a third-party claim respecting an incident during the term of the Lease and resulting in bodily injury, death, or property damage occurring in the Common Areas, and to Section 17.12, which converts that indemnity obligation into an obligation to defend with reasonably satisfactory counsel and to pay related fees and costs. Cross-Complainant argues that this language should be interpreted broadly. (Acceptance Ins. Co. v. Syufy Enterprises (1999) 69 Cal.App.4th 321, 328.) Cross-Complainant contends that a claim attributing responsibility to a party triggers that party's duty to defend as long as it includes a general description of conduct implicating the indemnitor. (UDC-Universal Dev., L.P. v. CH2M Hill (2010) 181 Cal.App.4th 10, 21.)

Cross-Complainant

argues that Plaintiff's allegations fall squarely within the defense provision because Plaintiff alleges the Defendants negligently owned, operated, maintained, inspected, and controlled the subject premises, that the incident

occurred in the Common Areas parking lot, and that there were failures to provide security, all of which directly implicate Cross-Defendant One Imperial's express obligations to maintain the Common Areas and provide a commercially reasonable level of security. Cross-Complainant argues that this duty arose immediately upon Cross-Complainant Big 5's initial tender and its re-tender to Cross-Defendant One Imperial's carrier on March 31, 2025, and that Cross-Defendant One Imperial breached the duty by declining the tender because Plaintiff erroneously named Cross-Complainant Big 5 Sporting Goods Corporation.

Cross-Complainant further argues that Cross-Defendant cannot accept the benefits of the Lease Agreement while disavowing its burdens, that the duty to defend is broader than the duty to indemnify, and that a carrier must defend any suit that is possibly or potentially covered even where coverage is in doubt and ultimately does not develop. (*Atlantic Mutual Ins. Co. v. J. Lamb, Inc.* (2002) 100 Cal.App.4th 1017, 1033-1034.) Cross-Complainant contends that any uncertainty or factual dispute regarding coverage establishes the duty to defend, and that facts extrinsic to the complaint may do the same. (*Horace Mann Ins. Co. v. Barbara B.* (1993) 4 Cal.4th 1076, 1081.)

In opposition, Cross-Defendant argues that it cannot owe an immediate and continuing duty to defend and indemnify against Plaintiffs' Third Amended Complaint because no Big 5 entity is a party to that complaint. Cross-Defendant argues that Plaintiffs dismissed Big 5 from the Third Amended Complaint on April 16, 2026, so no continuing duty can exist, and that for this reason alone the motion should be denied.

Cross-Defendant also argues that Cross-Complainant Big 5 LLC has failed to show that it is a party to the lease or that it was named as a defendant in the underlying litigation. Cross-Defendant argues that three separate and distinct Big 5 entities are involved, that only Big 5 Corp. was a party to the subject lease, only Big 5 Sporting Goods Corporation was named as a defendant, and only Big 5 LLC is a party to this motion, yet Cross-Complainant Big 5 LLC treats them as interchangeable without any supporting evidence. Cross-Defendant argues that a corporation is generally regarded as a legal entity separate and distinct from its stockholders, officers, and directors. (*Robbins v. Blecher* (1997) 52 Cal.App.4th 886, 892.) Cross-Defendant argues that parties who use and recognize the corporate form may be estopped to deny a corporation's separate

legal existence, and that Cross-Complainant Big 5 LLC cannot disregard the corporate structure for the benefit of this litigation while operating as a distinct corporation. (Communist Party v. 522 Valencia, Inc. (1995) 35 Cal.App.4th 980, 983-984.) Cross-Defendant argues that without evidence that Cross-Complainant Big 5 LLC was ever a named defendant or is the real party in interest under the lease, the Court must deny the motion.

Last,

Cross-Defendant argues that it is premature to decide whether any Big 5 entity is owed indemnity until the underlying case has been litigated, because the duty to indemnify does not arise until liability is proven and one can only indemnify against claims resolved against the indemnitee. (Aluma Systems Concrete Construction of California v. Nibbi Bros. Inc. (2016) 2 Cal.App.5th 620, 627.) Cross-Defendant argues that no Big 5 entity sustained damage because it was dismissed with prejudice in exchange for a waiver of costs, and that the lease's mutual indemnity provisions exclude, under subdivision (c), any indemnification obligation of Cross-Defendant One Imperial for an incident resulting from the negligence or willful misconduct of the Tenant or its representatives. Cross-Defendant argues that, because Plaintiffs' Third Amended Complaint attributes the incident to Big 5's actions and inactions, subdivision (c) may apply, and that until trial determines the outcome, the request for indemnification is premature.

A duty to defend is ripe when the claim for defense is made, not when an actual loss is suffered. (Crawford, supra, 44 Cal.4th 541, 558.)

Here, Cross-Complainant has shown that the lease reads "Landlord shall indemnify and hold Tenant . . . harmless against any loss, liability, or damage arising from a third party claim respecting any incident occurring during the term of this Lease and resulting in bodily injury, death, or property damage that (1) occurs in the Common Areas of the [Subject Premise]." (UMF 4.) Cross-Complainant also shows that Plaintiff's Complaint alleges a bodily injury that occurred in the common areas of the property. Last, Cross-Complainant has shown that it tendered its defense on March 31, 2025. Consequently, Cross-Complainant has shown all requirements for triggering the duty to defend under the lease agreement. Thus, the Court finds that Cross-Complainant has met its initial burden.

Cross-Defendant argues that it owes

no duty to defend because Cross-Complainant was dismissed from the instant case. However, the duty to defend arises upon tender and does not end at dismissal. (Navigators Specialty Ins. Co. v. Moorefield Construction, Inc. (2016) 6 Cal.App.5th 1258, 1283.) Cross-Defendant also argues that Big 5 LLC has failed to show that it is a party to the lease or that it was named as a defendant in the underlying litigation. However, the Court cannot find that a duty to defend does not exist merely because a Plaintiff named the wrong entity in her Complaint, and Cross-Complainant has shown that Big 5 LLC holds the rights to the lease signed by Big 5 Corp. Consequently, as to Cross-Defendant's duty to defend, Cross-Defendant has not shown any triable issue of material fact.

Cross-Complainant

also argues that the Court should order Summary Adjudication as to the issue of indemnification. However, duty to indemnify does not arise until liability is proven, and the underlying action is still at hand. Thus, the issue of indemnity is not yet ripe. (Aluma, supra, 2 Cal.App.5th 620, 627.)

Therefore, the Court grants the Motion for Summary Adjudication as to the duty to defend but denies the Motion for Summary Adjudication as to the issue of indemnification.